

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the ZOOM platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWkFQ2hTaEFuZnhlZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGvkQkoWckJSNnJwSSttYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. You are to mute your audio when you are not speaking.
 2. State your name before you speak for proper identification to the court and for all the parties in your case.
- Only one person MUST speak at a time.

PROHIBITION ON RECORDING: Do not record the hearing in any way. Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

MARLON WILFREDO SOTO,

Respondent

) Case Number: FCS-20-354367

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Respondent Marlon Wilfredo Soto (Father) and Other Parent Gricelda Coronel Alvarez (Mother) have one minor child together, Loana (DOB 12/8/2018, age 7). The parties share joint legal and physical custody of Loana on a 2-2-5-5 schedule. (Prior orders state it is a 2-2-3 schedule, but it appears it is a 2-2-5-5 schedule, with Father having Mondays and Tuesdays, Mother having Wednesdays and Thursdays, and the parties alternating Friday after school to Monday morning school drop off).
- 2) On for hearing is Father's ex parte request, which was set on shortened time for 8/27/2025. Father stated in his ex parte request that Loana came to him with a bruise on her leg and said Mother hit her. He states there were similar incidents in the past, that there have been prior Child Protective Services (CPS) reports, and that the Court ordered in 2024 that there shall be no corporal punishment.
- 3) Mother denies hitting Loana; she states that Loana slapped Mother and ran away, crashing into the standing pantry as she turned into the hallway. Mother states she was shocked when Loana

1 slapped her and believes she is learning this type of behavior while in Father's home. Mother
2 states that Father has a history of making CPS reports (she states this is the eighth report) and
3 coaching Loana. She states the current schedule has been in place for almost 4 years and is in
4 Loana's best interest. Mother requests various orders, including an order for the parents to
5 conduct all exchanges except in the case of an emergency, an overnight right of first refusal, for
6 the parties to limit their communication (she states Father harasses her with many messages), for
7 Father to ensure Mother has access to Loana's school, medical, and dental records, and for the
8 parties not to record the other party during custody exchanges.

- 9 4) In an update declaration, Father states that Mother fails to communicate with him about important
10 issues. He states she recently delayed informing him that Loana was involved in a car accident
11 when she was a passenger in a car Mother's sister was driving. He states the accident occurred on
12 8/16/2026 and he only learned of it the next night, on 8/17/2026, when Loana began complaining
13 of neck and back pain.

14 **B. Findings and Orders**

- 15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
16 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
17 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
18 child is the United States.
- 19 2) The Court finds it is in Loana's best interests to maintain the current custody and parenting time
20 orders. The parties shall cooperate to ensure that each party has full access to Loana's school,
21 medical, and dental records and shall keep each other informed of important updates regarding
22 Loana's education and health.
- 23 3) The parties shall communicate by text message only, except in the event of an emergency or an
24 urgent situation, in which case a phone call is acceptable. All communication between the parties
25 shall be peaceful and respectful and only about the child.
- 26 4) During custody exchanges, the parties shall not record or take photographs of—or permit others
27 at the custody exchanges to record or take photographs of—the other party. All custody
28 exchanges shall be brief, cordial, respectful, and peaceful.
- 29

- 1 5) Neither party shall make disparaging comments about the other party to Loana or within earshot
- 2 of the child.
- 3 6) All other requests are denied, and all prior orders not in conflict with these orders shall remain in
- 4 full force and effect.
- 5 7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JEFFREY WORTHLEY,

Petitioner

VS.

MOLLY MIZER,

Respondent

) Case Number: FPT-26-378909

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF REQUEST FOR ORDER OF CHILD CUSTODY AND/OR VISITATION
CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

**The parties are ordered to appear in person or via Zoom video at 9am on 8/27/2026 in
Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and
Instructions for Remote Appearance in San Francisco Family Court set forth above.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHAEL JERMAINE WHITE,

Petitioner

VS.

MARISSA MASUMITSU,

Respondent

) Case Number: FMS-19-387225

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING; REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD
CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Michael Jermaine White (Father) and Marissa Masumitsu (Mother) have one minor child together, Zendaya (DOB 2/9/2014, age 12). Mother has had sole legal and physical custody of Zendaya since 2018.
- 2) In April 2021, the Court suspended Father's visits after he failed to exercise his visits or participate in the proceedings. On 3/17/2026, after Father filed a request to resume visits, the Court maintained the order for sole legal and physical custody to Mother and ordered supervised visits for Father at Rally Family Visitation Services (Rally). The Court set a review hearing for 5/19/2026, then continued the hearing to 8/27/2026 after receiving a report from Rally that the parties had not yet been placed on Rally's waitlist because Father had not submitted his application fee. The Court ordered the parties to file and serve update declarations 10 days before the 8/27/2026 hearing.

3) Mother has filed update declarations stating Father has not yet completed the Rally process and that visits have therefore not begun. She states she has complied with all Court orders since 2018, including the most recent order for her to complete the intake process with Rally, and states that Father consistently fails to follow through.

4) Father has not filed an update declaration.

B. Findings and Orders

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.

2) The Court finds it is in Zendaya's best interest to maintain sole legal and physical custody to Mother and suspend Father's visits. The Rally order is hereby vacated.

3) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID WONG,

Petitioner

VS.

XIAOYAN MA,

Respondent

) Case Number: FDI-23-797598

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner David Wong (Father) and Respondent Xiaoyan Ma (Mother). The parties married on 3/3/2010. The parties disagree regarding their date of separation, but they agree their marriage lasted at least 12 years. The parties have one minor child, Jordan (DOB: 8/5/2011, age 14). Father is represented by attorney Frank Kim. Mother is represented by attorney Don Emley in limited scope.
- 2) On 11/8/2024, the Court issued a 2-Year Restraining Order After Hearing protecting Father against Mother. The restraining order is set to expire on 11/8/2026.
- 3) On 12/8/2025, following a trial before Judge Wiley which occurred on 4/9/2025, 4/17/2025, 6/11/2025, 7/8/2025, and 7/11/2025, Judge Wiley issued a Final Statement of Decision. Judge Wiley found that in February 2023, after the Petition for Dissolution and been filed and served, Mother transferred various life insurance policies to her adult daughter Shiyi Yang in violation of the ATROs. Judge Wiley found these unilateral transfers to be void. The Statement of Decision provides in pertinent part:

- a. Mother shall pay Father \$74,417.32, which constitutes half of the community property interest in the various identified life insurance policies or transfer to Father life insurance policies with an equivalent cash value or a combination of money and policies within 60 days of the date of the Final Statement of Decision.
- b. Following the equalization payment, the Court awards the life insurance policies insuring Father and Jordan to Father. Those policies, and the monthly premiums, will be transferred to Father as the owner of those policies. Those policy numbers are #8573 (insured party is Father), #8890 (insured party is Father), and #7087 (insured party is Jordan).
- c. Mother shall pay Father \$7,500 for prevailing party attorney's fees incurred pursuant to Family Code section 6344 and \$608 in costs within 45 days of the Final Statement of Decision.
- d. Father shall pay Mother \$20,000 in Family Code section 2030 attorney's fees within 45 days of the date of the Final Statement of Decision.

4) On 12/12/2025, Mother filed a Notice of Appeal of the 12/8/2025 Statement of Decision.

5) On 12/15/2025, a Court of Appeal Clerk filed a Notice of Filing of Notice of Appeal.

6) On 12/17/2025, Mother filed an Appellant's Notice Designating Record on Appeal.

7) On 12/17/2025, Mother filed a Request for Order. Mother states she does not have sufficient funds, assets, or access to credit to make the payments ordered within the Statement of Decision and she has no present ability to obtain such funds. Mother also states, "Although one item is currently titled in my name, I am presently unable to comply with the ownership or transfer provisions of the Final Statement of Decision because I lack unilateral legal authority and the practical ability to complete any transfer while the appeal is pending." Mother states, "Without a stay of enforcement, I face the risk of enforcement actions or sanctions despite my present inability to comply and the pendency of the appeal." Mother asks the Court to:

- a. Stay enforcement of the 12/8/2025 Final Statement of Decision pending appeal;
- b. Determine Mother's inability (not refusal) to comply;
- c. Clarify the stay covers insurance equalization, attorney's fees, and ownership / transfer obligations; and

- 1 d. Bar enforcement or sanctions as to those provisions during the appeal.
- 2 8) Within the Findings and Order After Hearing filed 4/17/2026, the Court adjudicated Mother's
- 3 12/17/2025 Request for Order and made the following findings and orders:
- 4 a. The Court finds that the provision requiring Mother to pay Father \$74,417.32 in cash "or
- 5 transfer to Father life insurance policies with an equivalent cash value or a combination
- 6 of money and policies" is a money judgment under Code of Civil Procedure section
- 7 680.270 and that Code of Civil Procedure section 917.1(a) applies to Mother's request for
- 8 a stay of enforcement of this provision.
- 9 b. Mother's request that the Court make a finding that Mother has an inability to comply
- 10 with the identified portions of the Judgment is denied. The Court does not find that
- 11 Mother has an inability to comply with the identified portions of the Judgment.
- 12 c. No later than Friday, 4/24/2026 at 5:00 PM Mother shall provide to the Department 404
- 13 Department Clerk a cashier's check in the amount of \$62,525.32 for an undertaking.
- 14 d. The Court will set a review hearing of Thursday, 5/28/2026 at 9:00 AM in Dept. 404 to
- 15 review Mother's compliance with this order and to determine whether to grant Mother's
- 16 request for a stay.
- 17 9) On 4/24/2026, Mother filed a Declaration stating she is unable to comply with the Court's order
- 18 requiring an undertaking because she lacks access to sufficient liquid funds.
- 19 10) On 5/12/2026, the Court denied an ex parte Request for Order filed by Mother that same day
- 20 requesting that the Court reduce or permit partial and or installments on the undertaking pending
- 21 appeal.
- 22 11) On 5/13/2026, Mother filed a Declaration asking the Court to "consider preservation of the
- 23 existing status and structure of the life insurance policies pending appellate review and the
- 24 practical effect that transfer, surrender, withdrawal, depletion, or other material alteration of the
- 25 policies may have on meaningful appellate review before those appellate issues are resolved."
- 26 12) On 5/18/2026, Father filed a Declaration arguing that a stay is not justified in this matter and that
- 27 Mother has no legal ground for winning her appeal. Father asks the Court to enforce Judge
- 28 Wiley's Final Statement of Decision and transfer the following life insurance policies into his
- 29 name: Transamerica life insurance policies #8573 (with a cash surrender value of \$83,974.77),

1 #8890 (with a cash surrender value of \$65,792.84), and #7087 (with a cash surrender value of
2 \$6,381.64). However, it appears Father is not asking for the full cash surrender value of these
3 policies to be transferred to Father, but rather \$30,000 from policy #8573, \$30,000 from policy
4 #8890, and \$2,525.32 from policy #7087, for total cash value of \$62,525.32 which is the net
5 amount Mother owes Father.

6 13) On 5/19/2026, Mother filed a Declaration. Mother states that the insurance policies at issue were
7 originally funded using money connected to property sale proceeds from China involving her
8 adult daughter Shiyi Yang. Mother states that because the policies were funded using money
9 connected to Shiyi Yang, Shiyi Yang's interests are implicated in Father's requests that policies
10 be transferred to him. Mother states that Shiyi Yang is the owner of policies #8890 and #7087.
11 Mother states the policies should not be accessed, withdrawn against, surrendered, depleted,
12 transferred, or otherwise materially altered before completion of the appeal. Mother states,
13 "Preservation of the existing condition and structure of the policies is necessary to maintain the
14 status quo while the appellate issues concerning ownership, transfer, valuation, equalization, and
15 third-party interests remain unresolved."

16 14) On 5/21/2026, Father filed a Declaration stating that Judge Wiley already determined that the
17 home in China whose proceeds were used to purchase the life insurance policies belonged to
18 Mother and not her daughter Shiyi Yang. Judge Wiley also determined that transfer of ownership
19 of the life insurance policies to Shiyi Yang only occurred after Mother filed for Dissolution of
20 Marriage, and that transfer is void because it is in violation of the ATROs. Father reiterates his
21 request that the identified policies be transferred to him.

22 15) On 5/22/2026, Mother filed a Reply Declaration reiterating her request that the Court deny
23 Father's requests, preserve the disputed policies, and maintain the status quo pending appellate
24 review.

25 16) At the prior 5/28/2026 hearing (per the Findings and Order After Hearing filed 6/8/2026), the
26 Court adopted its Tentative Ruling without objection and ordered the following:

- 27 a. On the Court's own motion, the Court hereby joins Shiyi Yang as a party to this
28 proceeding under California Rules of Court, rule 5.24(e)(2). The Court will issue a
29 Summons (Joinder), which will be mailed to both parties. No later than 6/15/2026,

1 Mother must: have Ms. Yang served with a copy of the Summons as well as a copy of the
2 Findings and Order After Hearing for the 5/28/2026 hearing date using a service method
3 set forth in California Rules of Court, rule 5.68 and (b) file a Proof of Service of
4 Summons (POS-010) showing compliance with this order and serve a copy of the POS-
5 010 on Father's attorney.

6 b. Ms. Yang is precluded from transferring ownership of or making any changes to
7 TransAmerica life insurance policies ending in #8573, #8890, and #7087. Ms. Yang is
8 also precluded from borrowing against, withdrawing, or transferring any of the cash
9 surrender values of these plans. In other words, TransAmerica life insurance policies
10 ending in #8573, #8890, and #7087 are hereby frozen.

11 c. As soon as possible, Father shall have a copy of the Findings and Order After Hearing for
12 the 5/28/2026 hearing date served on the appropriate TransAmerica representative to
13 inform TransAmerica of this order and he shall also file and serve a Proof of Service
14 evidencing service of this order.

15 d. A review hearing was set for Thursday, 7/9/2026 to review the parties' compliance with
16 the above orders and to determine whether to grant Mother's request for a stay.

17 17) Due to the Court's oversight, the Summons (Joinder) was not issued until 6/23/2026.

18 18) On 6/29/2026, Father filed an Update Declaration. Father states his attorney emailed a copy of the
19 Summons (Joinder) to Ms. Yang. Father also states that TransAmerica told his attorney that it
20 cannot "follow the court order" because "the request must come from the owner of each life
21 insurance policy." Father's attorney asked Mother and Ms. Yang to "submit a freeze on any type
22 of transactions of their respective TransAmerica accounts since Petitioner is not allowed to."
23 Father states he is unaware if anything has been submitted to TransAmerica by Mother or Ms.
24 Yang. Father asks the Court to deny Mother's motion to stay.

25 19) On 6/29/2026, Mother filed a Declaration stating the appeal remains pending. Mother states,
26 "preservation of the current status of the disputed life insurance policies remains necessary
27 pending completion of appellate review."

28 20) On 7/6/2026, Mother filed another Declaration stating she was unaware the Summons (Joinder)
29 had been issued until 6/29/2026. Mother states she personally handed the documents to Ms. Yang

1 on 6/29/2026. Mother states she later learned she is not permitted to personally serve the
2 Summons on Ms. Yang, and so Mother had a third party mail the documents to Ms. Yang.
3 Mother then subsequently realized that service by mail requires a signed Notice and
4 Acknowledgment of Receipt, and so on 7/3/2026, Mother had a third party mail the Summons
5 (Joinder), Findings and Order After Hearing, Notice and Acknowledgment of Receipt, and a
6 postage-paid return envelope to Ms. Yang. However, as of 7/3/2026, she has not received a
7 signed Notice and Acknowledgment of Receipt from Ms. Yang and so she has not filed a Proof of
8 Service as required by the Court's prior order. Mother also states that she tried contacting the
9 ACCESS Center for assistance but they did not respond to her inquiries.

10 21) On 7/8/2026, the Court issued a Tentative Ruling which stated in part:

- 11 a. The hearing on Mother's request for a stay shall be continued to 7/30/2026.
- 12 b. Mother shall continue attempts to serve the Findings and Order After Hearing (filed
13 6/8/2026) as well as the Summons on Ms. Yang.
- 14 c. In advance of the next hearing date, Mother and / or Ms. Yang, to the extent either is the
15 owner of TransAmerica life insurance policies ending in #8573, #8890, and #7087, shall
16 execute and transmit to TransAmerica a Letter of Instructions directing TransAmerica to
17 place an immediate freeze on those policies, prohibiting any transfer of ownership,
18 withdrawal, loan, or any other transaction affecting the policies or their cash surrender
19 values without further order of this Court. Mother and Ms. Yang shall thereafter serve on
20 Father's attorney a copy of the Letter of Instructions as well as proof of transmission of
21 the Letter of Instructions to TransAmerica.
- 22 d. At least 10 calendar days prior to the next hearing date, the parties shall file and serve
23 update declarations (not to exceed 5 pages in length, not including exhibits).

24 22) At the prior 7/9/2026 hearing, Mother appeared in pro per and Father appeared with his attorney
25 Frank Kim. At the hearing, Father's attorney stated that Mother and Shiyi Yang live together. The
26 Court adopted its Tentative Ruling.

27 23) On 7/20/2026, Mother filed a Proof of Service of Summons which indicates that the Summons
28 and Findings and Order After Hearing (filed 6/8/2026) were personally served on Ms. Yang on
29 7/16/2026.

1 24) On 7/20/2026, Mother filed an Update Declaration stating: "At the July 9 hearing, the Court
2 orally ordered me to serve the Summons (Joinder) on Shiyi Yang but did not orally order either
3 me or Shiyi Yang to execute or transmit the proposed Letter of Instructions." The Court notes that
4 the latter portion of this statement is incorrect as the Court adopted its Tentative Ruling at the
5 prior hearing.

6 25) Mother further states, "As of the date of this declaration, I have not received a signed and filed
7 Findings and Order After Hearing, a minute order, or any other written order following that
8 hearing. On July 17, 2026, I emailed Department 404, with Petitioner's counsel copied, to request
9 procedural guidance and received only an automated acknowledgment... Because no July 9
10 written order has been provided to me, I have been unable to serve that order on Shiyi Yang... I
11 respectfully request that the Court grant a stay preserving the present ownership, structure, and
12 value of the disputed life insurance policies pending resolution of the appeal, including a stay of
13 enforcement of any provision that would transfer ownership to Petitioner or permit any
14 withdrawal, loan, surrender, depletion, access to cash value, or other material alteration of the
15 policies. I further request that the Court not condition its determination of my stay request on the
16 proposed Letter of Instructions, for which no factual need has been shown, or on separate conduct
17 by Shiyi Yang that I do not control."

18 26) On 7/21/2026, Father filed an Update Declaration. Father states he is unaware if anything has
19 been submitted to TransAmerica by Mother or Ms. Yang. Father states that Mother has requested
20 multiple extensions to file her opening brief with the Court of Appeal (from 5/18/2026, to
21 6/29/2026, to 7/17/2026, and finally to 8/12/2026), and the Court of Appeal has stated it will no
22 longer contemplate any further extension requests by Mother. Father requests that TransAmerica
23 life insurance policies #8573 (owned by Mother; Father is the insured party; available cash
24 surrender value of \$83,974.77), #8890 (owned by Ms. Yang; Father is the insured party; available
25 cash surrender value of \$65,792.84), and #7087 (owned by Ms. Yang; the parties' daughter is the
26 insured party; available cash surrender value of \$6,381.64) be transferred to Father as owner of
27 the policies. Father states he is in daily fear that if anything were to happen to him, neither Father
28 nor their daughter would be taken care of from the life insurance policies. In the alternative,
29

1 Father asks that the net total owed to him under Judge Wiley's order be transferred to him for
2 policy #8573. Father also asks the Court to deny Mother's request for a stay.

3 27) On 7/22/2026, the Court issued (and mailed to Mother and Father's attorney) the Findings and
4 Order After Hearing for the 7/9/2026 hearing date.

5 28) On 7/23/2026, Mother filed a Reply Declaration stating she is not in receipt of the order from the
6 7/9/2026 hearing date. Mother states, "Petitioner's July 20 declaration identifies me as owner of
7 policy 8573 and Shiyi Yang as owner of policies 8890 and 7087. Transferring any of these
8 policies to a different owner would change their ownership. Any withdrawal from or other use of
9 policy value to satisfy \$62,525.32 would also change the value of the affected policy. Either
10 action would materially alter the disputed policy or policies before the Court of Appeal reviews
11 the challenged adjudications."

12 29) At the prior 7/30/2026 hearing (per the Findings and Order After Hearing filed 8/12/2026), the
13 Court made the following findings and orders:

- 14 a. The Court finds that service of the Summons and order joining Shiyi Yang as a party to
15 this proceeding has been completed.
 - 16 b. No later than Friday, 8/7/2026, Mother shall execute and transmit to TransAmerica a
17 Letter of Instructions directing TransAmerica to place an immediate freeze on
18 TransAmerica life insurance policy ending in #8573, prohibiting any transfer of
19 ownership, withdrawal, loan, or any other transaction affecting the policies or their cash
20 surrender values without further order of this Court.
 - 21 c. No later than Friday, 8/7/2026, Shiyi Yang shall execute and transmit to TransAmerica a
22 Letter of Instructions directing TransAmerica to place an immediate freeze on
23 TransAmerica life insurance policies ending in #8890 and #7087, prohibiting any transfer
24 of ownership, withdrawal, loan, or any other transaction affecting the policies or their
25 cash surrender values without further order of this Court.
 - 26 d. No later than Monday, 8/10/2026, Mother and Ms. Yang shall serve on Father's attorney
27 a copy of the Letter of Instructions as well as proof of transmission of the Letter of
28 Instructions to TransAmerica.
- 29

1 30) On 8/10/2026, attorney Don Emley filed a Substitution of Attorney substituting in as Mother's
2 attorney of record "in Limited Scope." The Substitution of Attorney does not specify the scope of
3 Mr. Emley's substitution.

4 31) On 8/17/2026, Mother filed a Declaration. Attached to Mother's declaration is a copy of an email
5 sent by Mother to elifecustomersupport@aegonusa.com on 8/5/2026 wherein Mother identifies
6 herself as the owner of policy #8573 and requests a freeze prohibiting any transfer of ownership,
7 withdrawal, loan, or other transaction affecting the policy. Also attached to Mother's declaration
8 is a copy of an email sent by Shiyi Yang to the same Transamerica email address containing the
9 same information regarding policies #8890 and #7087. Mother states she has not initiated,
10 authorized, or attempted any transfer of ownership, beneficiary change, withdrawal, loan,
11 surrender, or other transaction affecting policies #8573, #8890, and #7087, and her appeal of the
12 12/8/2025 Statement of Decision remains pending. Mother requests that the Court (1) find that
13 the freeze-instruction transmission and service requirements have been completed; (2) continue
14 the existing freeze on policies 8573, 8890, and 7087; and (3) grant my pending request for a stay
15 pending appeal of enforcement of the portions of the December 8, 2025 Final Statement of
16 Decision concerning the disputed policies, including any enforcement that would transfer
17 ownership of policies 8573, 8890, or 7087, or satisfy the equalization requirement through any
18 withdrawal from, use of, or other reduction of policy value.

19 32) On 8/19/2026, Father filed a Declaration. Father states that after granting multiple extensions for
20 Mother to file her opening brief, the Court of Appeal notified both parties on 8/13/2026 that
21 Mother failed to file her opening brief on the due date of 8/12/2026 and the appeal will be
22 dismissed if she does not file her opening brief by 8/28/2026. Father requests that TransAmerica
23 life insurance policies #8573 (owner – Xiaoyan Ma, insured party – David Wong), #8890 (owner
24 – Shiyi Yang, insured party – David Wong) and #7087 (owner – Shiyi Yang, insured party –
25 Jordan Wong) be transferred to Father as owner of the policies. Father states, "There is no reason
26 for Respondent to be the owners of those policies as Petitioner and Jordan are the insured parties
27 and if anything unfortunate were to happen to Petitioner, Petitioner needs to be sure that Jordan
28 will be taken care of by the policies. This was the main reason why the life insurance policies
29 were purchased for in the first place. Also, for policy 015068890 (owner – Shiyi Yang, insured

1 party – David Wong), there is a Long Term Care Rider on the policy which means if the insured
2 party becomes incapacitated for any reason, the insured party can use up to 50% of the policy
3 prior to death to use for medical purposes.” Father states he is “in daily fear that if anything were
4 to happen to him, Petitioner nor Jordan would not be taken care of from the life insurance
5 policies.” Father states he “does not believe that Respondent’s appeal will win her case in the
6 Appellate Court as she has not provided any evidence to have the Honorable Judge Wiley’s
7 decision overturned.”

8 **B. Findings and Order**

- 9 1) Code of Civil Procedure section 917.1(a)(1) states: “(a) Unless an undertaking is given, the
10 perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the
11 judgment or order is for any of the following: (1) Money or the payment of money, whether
12 consisting of a special fund or not, and whether payable by the appellant or another party to the
13 action.”
- 14 2) The Court finds that the freezing of life insurance policies #8573, #8890, and #7087 satisfies the
15 undertaking requirement in Code of Civil Procedure section 917.1(a)(1), and that Mother and Ms.
16 Yang have taken the Court-ordered steps to freeze those policies. These policies shall remain
17 frozen pending the appeal. Until the Court specifically orders otherwise, Mother and Ms. Yang
18 are precluded from transferring ownership of, making any changes to, borrowing against,
19 withdrawing from, or transferring any cash surrender value of TransAmerica life insurance
20 policies ending in #8573, #8890, and #7087.
- 21 3) The Court finds good cause to stay enforcement of the following orders set forth in the 12/8/2025
22 Final Statement of Decision pending appeal:
 - 23 a. “Respondent shall pay to Petitioner the sum of \$74,417.32 which constitutes half of the
24 community property interest in the policies or transfer to Petitioner life insurance policies
25 with an equivalent cash value or a combination of money and policies.”
 - 26 b. “Following the equalization payment, the Court awards the life insurance policies
27 insuring Petitioner and Jordan Wong to the Petitioner. Those policies, and the monthly
28 premiums, will be transferred to Petitioner as the owner of those policies. Those policy
29

1 numbers are 15068573 (Insured party is David Wong), 15068890 (Insured party is David
2 Wong), and 15257087 (Insured party is Jordan Wong).”

3 c. “Respondent shall pay Petitioner \$7,500 for prevailing party attorney’s fees incurred
4 pursuant to Family Code section 6344, and \$608 in costs within 45 days of the Final
5 Statement of Decision.”

6 d. “Petitioner shall pay Respondent \$20,000 in 2030 attorney’s fees within 45 days of the
7 date of the Final Statement of Decision.”

8 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOY ORTEGA,

Petitioner

VS.

OSCAR ERNESTO LOPEZ,

Respondent

) Case Number: FDI-23-798315

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: SET ASIDE ENTRY OF DEFAULT AND ALLOW RESPONDENT TO
FILE A RESPONSE

TENTATIVE RULING

As there is no indication in the record that Mother was served with a copy of the Tentative Ruling Instructions, as required by San Francisco Local Rule 11.7(D)(3)(a), the parties are ordered to appear in-person or by Zoom video at 9:00 AM in Dept. 404 on 8/27/2026. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

At the hearing, absent good cause shown, the Court intends to adopt the following findings and orders.

A. Procedural History

- 1) Petitioner Joy Ortega (Mother) and Respondent Oscar Ernesto Lopez (Father) married on 4/2/2017. Mother contends the parties separated on 3/1/2019, for a marriage of 1 year and 11 months. Father contends the parties separated in November 2018, for a marriage of 1 year and 4 months. The parties have one minor child, De' Angelo (DOB: 5/16/2014, age 12).
- 2) On 7/6/2023, Father filed a Petition for Dissolution in Alameda County.
- 3) On 7/10/2023, Mother filed a Petition for Dissolution in San Francisco County.

- 1 4) On 4/30/2024, Alameda County granted Mother's request to transfer venue of the parties'
2 dissolution action to San Francisco County.
- 3 5) On 7/11/2024, the Alameda County case file was transferred to San Francisco County.
- 4 6) On 7/12/2024, the Court entered Father's default, upon Mother's request.
- 5 7) On 11/5/2024, Mother submitted a proposed True Default Judgment, which was rejected by a
6 clerk on 12/5/2024 due to various errors.
- 7 8) Between 2023 – 2025, both parties appeared in this case for multiple hearings on multiple issues.
8 The most recent order was filed on 11/24/2025 following a hearing which occurred on 11/6/2025
9 before Judge Wiley. The order notes that both parties appeared for the hearing via Zoom. The
10 order maintains prior sole legal and sole physical custody of the minor child with Mother.
- 11 9) On 5/13/2026, Mother again submitted a proposed True Default Judgment for the Court's review.
12 It was rejected by a clerk on 6/3/2026 due to various errors.
- 13 10) On 7/7/2026, Mother again submitted a proposed True Default Judgment for the Court's review.
14 It was again rejected by a clerk on 7/16/2026 due to various errors.
- 15 11) Now on for hearing is Father's Request for Order filed 7/2/2026 asking the Court to set aside
16 Father's default and allow Father to file a Response to the Petition in this case. Father states, "At
17 the time this matter was proceeding, Oscar was detained by immigration and had difficulty
18 preparing and filing a Response. Oscar has since been deported and remains outside of the United
19 States, which has made it more difficult for him to address the default and move the case forward
20 without court intervention."
- 21 12) Per the Proof of Service filed 7/7/2026, Father's Request for Order was mailed to the address the
22 Court has on file for Mother on 7/2/2026.
- 23 13) Mother did not file a Responsive Declaration.

24 **B. Findings and Order**

- 25 1) The Court finds good cause to grant Father's request to set aside his default. Father's default is
26 hereby vacated.
- 27 2) Father may file a Response to the Petition no later than 9/30/2026.
- 28 3) The Court will prepare the Findings and Order After Hearing.
- 29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KABIR SINGH SIKAND,	)	Case Number: FDI-23-798647
Petitioner	)	Hearing Date: August 27, 2026
VS.	)	Hearing Time: 9:00 AM
PREETI HOODA SIKAND,	)	Department: 404
Respondent	)	Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Kabir Sikand (Father) and Respondent Preeti Sikand (Mother) married on 11/28/2007. The parties disagree regarding their date of separation. Father contends the parties separated on 11/24/2020, for a marriage of 13 years. Mother contends the parties separated on 9/21/2023, for a marriage of 15 years and 10 months. The parties have one minor child, Kai (DOB: 11/4/2014, age 11). Father is represented by attorney Ana Cazeneuve of DeLacey, Riebel & Shindell LLP. Mother is represented by attorney Jonathan Larose.
- 2) In 2024, both parties filed Requests for Domestic Violence Restraining Order against the other party. However, per the Stipulation and Order filed 6/14/2024, the parties agreed to dismiss their Requests for DVRO without prejudice.
- 3) At the prior 3/4/2025 hearing (per the Findings and Order After Hearing filed 4/4/2025), the Court ordered both parties to spend 20 hours per week seeking work, to apply to 10 jobs per week, and to maintain and serve monthly logs documenting seek work efforts.

- 1 4) On 1/23/2026, Mother filed a Request for Order seeking guideline child and temporary spousal
2 support retroactive to the date she filed her Request for Order, as well as an order requiring that
3 all child support add-ons be shared in accordance with Family Code section 4061. Mother further
4 asked the Court to delay any imputation of income to her until August 2026 because she is
5 currently taking classes at City College in San Francisco to update her photography skills. Mother
6 stated she is 48 years old and was a homemaker during the parties' marriage. Mother states she
7 has a BFA in New Media and an MFA in photography and she currently works as a blog editor,
8 technical consultant, and website designer for a school in India (for which she is paid \$1,000 per
9 month for 25 hours of work per week). Mother states she has been looking for work, including as
10 a barista, but has been unsuccessful. Mother states she has borrowed \$230,000 from family to pay
11 expenses, including paying \$170,000 in attorney's fees. Mother states she currently receives food
12 stamps. Mother states Father is a successful technology professional earning \$240,000 annually
13 who is in sole possession of the parties' three-story, seven room Queen Anne house in Hayes
14 Valley with a separate in-law apartment that the parties used to rent out to tenants.
- 15 5) On 1/20/2026, Mother filed an Income and Expense Declaration. Mother states her income is
16 \$1,000 per month. Mother states her monthly expenses total \$7,880. Mother states she has \$7,221
17 in cash savings and her other assets are "TBD". Mother states she owes \$21,629 for a car, \$3,598
18 for credit card debt, and \$165,000 for a loan from family and friends. Mother also states their son
19 spends 25% of his time with Mother.
- 20 6) On 2/4/2026 and 2/5/2026, a long-cause hearing was held. Per the Order After Hearing filed
21 2/6/2026, Judge Mori made final custody orders, awarding Father sole physical custody of Kai
22 and awarding joint legal custody of Kai with Father having final tiebreaker decision-making. The
23 order also adopted their parenting coordinator's recommendation for Kai to be in Mother's care
24 every other weekend on Friday at school pick up and drop off on Sunday at 7:30 PM or through
25 Monday at 7:30 PM if there is no school on that Monday, and one day per week on Mondays, and
26 the parties to alternate holidays and school breaks (including week on / week off during summer).
- 27 7) On 4/10/2026, Father filed a Responsive Declaration. Father states he consents to guideline child
28 support but does not consent to pay spousal support. Father states he was previously ordered to
29 pay child and spousal support to Mother (see Findings and Order After Hearing filed 5/23/2024).

1 However, at the hearing on 3/4/2025 (Findings and Order After Hearing filed 4/4/2025), the
2 parties agreed to set support at \$0 due to Father's job loss and the Court ordered both parties to
3 abide by the attached Seek Work Orders. Father states Mother has never provided her compliance
4 with the Seek Work Orders. Father states Mother holds a Bachelor's Degree in Communications
5 in addition to her other stated degrees. Father states the school for which Mother currently works
6 as a blog editor, technical consultant, and website designer is owned by Mother's family, and that
7 Mother previously informed Father that this position was a three-month temporary position.
8 Father states Mother has chosen to work part-time at below-market wages and takes voluntary
9 photography coursework one afternoon per week. Father notes Mother has not provided any proof
10 of enrollment, duration, or how the coursework will add to her existing credentials. Father
11 contends that had Mother complied with the Seek Work Orders issued 13 months ago, she likely
12 would have already secured full-time work at well above minimum wage. Father contends
13 Mother could be earning \$90,000 per year, or \$7,500 per month, and asks the Court to impute this
14 amount to Mother. Father states he began working for HubSpot in December 2025 after one year
15 of unemployment (during which Father states he incurred significant debt). Father states he has
16 made good faith settlement efforts regarding a support amount for Mother.

17 8) On 4/10/2026, Father filed a Memorandum of Points and Authorities.

18 9) On 4/10/2026, Father filed an Income and Expense Declaration. Father agrees that Kai is in
19 Mother's care 25% of the time.

20 10) On 4/16/2026, Mother filed a Reply Declaration. Mother states she is taking Advanced Photoshop
21 and Business Practices in Photography classes that require more than 30+ hours of weekly course
22 work and is walking dogs up to 10 hours weekly earning \$500 per month. Mother states she never
23 studied Communications and does not have a degree in it. Mother notes that Father only offers
24 her weekday visitation times, which impacts her ability to work on weekdays.

25 11) On 4/16/2026, Mother filed an additional Income and Expense Declaration. Mother states her
26 position at the school in India "ended."

27 12) On 4/16/2026, Mother filed a Statement of Support Calculations.

28 13) At the prior 4/23/2026 hearing (per the Amended Findings and Order After Hearing filed
29 6/26/2026), the Court made the following orders.

- 1 a. The Court finds good cause to impute Mother with 25 hours per week of minimum wage
2 income. This amounts to $((\$19.81 \times 25) \times 52) / 12 = \$2,146$ per month. This order is
3 made without prejudice to the Court's ability to impute additional income to Mother at
4 the upcoming trial.
- 5 b. Mother shall continue to comply with the existing Seek Work Order. The Court's
6 jurisdiction to modify child and spousal support retroactive to the date she secures a
7 position of paid employment where she is earning more than \$2,146 per month is
8 reserved.
- 9 c. Effective 1/23/2026, in accordance with the XSpouse calculation, Father shall pay to
10 Mother \$472 per month in guideline base child support and \$3,427 per month in
11 temporary guideline base spousal support, for total support due and owing of \$3,898 per
12 month.
- 13 d. Effective 1/23/2026, in addition to base child and temporary spousal support, Father shall
14 pay as additional Smith / Ostler child and temporary spousal support a portion of any and
15 all additional gross income (e.g., bonuses and vested RSUs) received in excess of his
16 base salary of \$20,000 per month, pursuant to the Bonus Table attached hereto and
17 incorporated herein. Smith / Ostler child and spousal support shall be paid to Mother
18 within 10 days of Father receiving the additional income and he shall provide to Mother
19 at the same time as payment documentary evidence showing the amount of additional
20 income received by Father.
- 21 e. Effective 1/23/2026, the parties shall share 65 (Father) / 35 (Mother) the following child
22 support add-on expenses:
- 23 i. All childcare costs incurred for employment as defined in Family Code section
24 4062(a)(1);
- 25 ii. All reasonable uninsured healthcare costs for Kai;
- 26 iii. All travel expenses incurred by Mother to take Kai to Tahoe for snowboarding
27 team during snowboarding team season. The reimbursable expenses are: mileage
28 for Mother from her home in Danville to Tahoe and back to Tahoe and the cost
29 of lodging in the Tahoe area. Reimbursement costs do not include meals.

- 1 f. A review hearing was set for 8/27/2026 to review child and spousal support, review
2 Mother's compliance with the Seek Work Order, and consider imputing full-time income
3 to Mother.

4 14) On 8/17/2026, Father filed an Update Declaration, a Statement of Support Calculations, and an
5 Income and Expense Declaration. Father states that, to date, he has never received Mother's seek
6 work logs. Father asks the Court to:

- 7 a. Clarify that, for purposes of the Smith/Ostler order, RSU income is received on the first
8 trading day on which the vested shares are both (a) deposited and settled in my brokerage
9 account and (b) saleable by Father under HubSpot's insider trading policy, and that the
10 additional gross income is calculated using the closing price of HubSpot stock on that
11 date multiplied by the gross number of shares vesting. Father requests that the 10-day
12 payment period run from that date, and that this mechanism apply to all future vesting
13 events.
- 14 b. Order Mother to pay Father existing child support add-ons in the amount of \$695.91, to
15 be deducted from my next support payment due on 9/1/2026
- 16 c. Impute Mother with monthly income of \$7,500 per month for purposes of determining
17 temporary spousal and child support. Father states that this is a below market salary for
18 photographers in San Francisco.
- 19 d. Modify combined child and temporary spousal support to \$2,160

20 15) On 8/17/2026, Father filed a Statement of Support Calculations.

21 16) On 8/17/2026, Father filed an Income and Expense Declaration. Father states that he is 49 years
22 old and works as a Director of Business Development for Hubspot, Inc. Father states that he earns
23 \$20,800 per month. Father states that he has \$1,835 in cash savings and \$2.3 million in real and
24 personal property. Father estimates that his monthly expenses total \$22,212. Father states that he
25 owes \$24,441 for a Tesla auto loan, owes \$43,914 in credit card debt, and \$480,000 to his parents
26 for a loan.

27 17) On 8/19/2026, a 3-afternoon long-cause hearing on the issue of date of separation concluded. The
28 matter is currently under submission.

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1 18) On 8/25/2026, Mother filed a Reply Declaration. Mother states that she was a stay-at-home wife
2 and mother when the parties married and she did not have an extensive job history and
3 marketable skills when she married Father and through the entirety of the parties' marriage.
4 Mother states that during their marriage she had a handful of short term freelance jobs. Mother
5 states that she was recently enrolled in two classes at City College which required 25-30 hours of
6 weekly work and she is currently enrolling in two other courses at City College which start next
7 week, an Environmental Portraiture (which Mother states would help her land more editorial
8 types of work) and a Lighting class. Mother attached as Exhibit A copies of her search work logs.
9 Mother states she thought her search work logs only needed to be made available to the Court.
10 Mother states, "neither the Petitioner nor his counsel have the personal knowledge and or
11 expertise to state with any type of certainty, what someone with my skills, employment history,
12 and education, could make in the work force. They are not experts in this area, and imputing me
13 income of \$90,000.00 is based on no admissible data points, and the Petitioner's request to do so
14 should be denied." Mother requests the Court:

- 15 a. Reserve any reimbursement of "child support add on" for the trial on their financial
16 issues "as we both have existing reimbursement requests, that continually change"
- 17 b. Father to pay Mother \$550 per month for travel expenses for visitation (including gas and
18 toll charges)
- 19 c. Modify child and temporary spousal support to include 20 hours of minimum wage
20 income (\$16.90 per hour) plus an additional \$800 per month for the dog walking work
21 Mother is currently doing

22 19) On 8/25/2026, Mother filed an Income and Expense Declaration. Mother states that she is 48
23 years old, has a BFA in New Media, and an MFA in Photography. Mother was last employed in
24 Website Design and as a Blog Editing Consultant for Vega Schools in India between 7/1/2025
25 and 7/31/2025. For that job, she worked 25 hours per week and earned \$1,000 per month. Mother
26 states that she earns \$700 – 900 per month walking dogs. Mother states she has \$30,000 in cash
27 savings and \$1.1 million in community property real estate equity. Mother states that her monthly
28 expenses total \$9,162. Mother states she owes \$18,000 for a car loan, owes \$16,426 in credit card
29 debt, and owes \$288,000 for a loan from family and friends.

20) On 8/25/2026, Father filed a Motion to Strike Mother's declaration. Father states, "The Findings and Order After Hearing filed on June 26, 2026, following the April 23, 2026 hearing ordered that '[a]t least 10 calendar days prior to the next hearing date, both parties shall file and serve updated Income and Expense Declarations, Statements of Support Calculations, and update declarations.'...Petitioner timely filed and served his updated documents on August 17, 2026. Respondent served hers eight (8) days after the court ordered deadline, under a 'reply' label that no order or rule authorizes for this hearing. As a result of the late service, Petitioner has not had time to review and analyze Respondent's income and expense information and support calculations, or to prepare any written response to the factual assertions in her declaration, before the hearing."

21) The Court notes the following future hearing dates:

- a. 10/19/2026 – Trial setting before Judge Chan
- b. 11/2/2026 – Judicial Settlement Conference before Judge Luna

B. Findings and Order

- 1) Father's request to strike Mother's pleadings filed 8/25/2026 is denied.
- 2) Father's request that the Court impute Mother with \$7,500 per month in income is denied. The Court does not find that Father has met his burden to prove that Mother has the ability or opportunity to earn that level of income. This finding and order is without prejudice to Father's ability to provide further evidence regarding this claim when long-term spousal support is adjudicated.
- 3) Given the evidence currently before the Court, the Court is only able to find that Mother has the ability and opportunity to earn fulltime minimum wage income. However, Father's income has also increased by \$800 per month. If the support calculation were adjusted to account for these changes in the parties' incomes, support would only be minimally impacted. On this basis, the Court declines to modify child and temporary spousal support at this time.
- 4) Father's request that the Smith / Ostler order be clarified as follows is granted. For purposes of the Smith/Ostler order, RSU income is received on the first trading day on which the vested shares are both (a) deposited and settled in my brokerage account and (b) saleable by Father under HubSpot's insider trading policy, and that the additional gross income is calculated using

1 the closing price of HubSpot stock on that date multiplied by the gross number of shares vesting.
2 The 10-day payment period shall run from that date, and this mechanism shall apply to all future
3 vesting events.

4 5) The following requests are denied without prejudice to a properly noticed request as they are
5 beyond the scope of the 8/27/2026 hearing. The parties shall meet and confer on these issues. If
6 the parties are unable to reach an agreement, either party may file and serve a new Request for
7 Order.

8 a. Father's request that Mother pay him child support add-ons in the amount of \$695.91.

9 b. Mother's request that Father pay her \$550 per month for travel expenses for visitation
10 (including gas and toll charges).

11 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARTHA ALEJANDRA BAYARDO,

Petitioner

VS.

CARLOS GERARDO BAYARDO,

Respondent

) Case Number: FDI-24-799607

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHILD CUSTODY, VISITATION, SUPPORT, BIFURCATION AND
TERMINATION OF STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Martha Bayardo (Mother) and Respondent Carlos Bayardo (Father) married on
6/6/2012 and separated on 6/7/2018, for a marriage of 6 years. The parties have one minor child,
Roberta (DOB: 12/2/2013, age 12). Mother is represented in limited scope by attorney Hector
Chinchilla. Father is self-represented.
- 2) On 2/3/2026, Mother filed the instant Request for Order asking the Court to award her sole legal
and physical custody, award Mother guideline child support, issue Mother's proposed holiday
schedule, and bifurcate and terminate the parties' marital status.
- 3) On 2/20/2026, the parties appeared for a Mandatory Settlement Conference and reached several
agreements.
- 4) On 4/7/2026, the parties appeared for a hearing on Mother's 2/3/2026 Request for Order. The
Court ordered the parties to attend mediation and set the matter for a continued hearing on
6/4/2026.

- 1 5) On 4/24/2026, a Judgment was entered which incorporates the parties' Marital Settlement
2 Agreement (MSA). The MSA provides in relevant part that legal and primary physical custody
3 shall be granted to Mother with a visitation schedule for Father. The MSA also provides, "As
4 regards child support, the parties have since separation, addressed this issue through an informal
5 private agreement. Unless and until a further order from the court the parties have agreed to
6 maintain the status quo." The MSA also terminates the Court's jurisdiction to award spousal
7 support to either party.
- 8 6) On 5/11/2026, a Child Custody and Visitation Stipulation and Order was entered which states that
9 Mother shall have sole legal custody and the parties shall share joint physical custody. The
10 Stipulation and Order outlines a regular and holiday visitation schedule.
- 11 7) On 5/26/2026, Mother filed an Income and Expense Declaration. Mother states she is 54 years
12 old and has a Masters Degree in Marketing. Mother works 40 hours per week for her pet care
13 business. Mother attached a 2025 Profit and Loss Statement which shows that she earned \$88,947
14 in gross income in 2025 and paid \$48,904 in expenses (not including depreciation), for net self-
15 employment income of \$40,043, which averages out to \$3,337 per month. Mother estimates that
16 Father earns \$8,000 per month.
- 17 8) On 6/1/2026, Mother filed a declaration to which a proposed XSpouse calculation is attached,
18 which shows \$630 per month in guideline child support payable by Father based on Father's
19 earning \$6,500 per month in self-employment income and Mother earning \$1,750 per month in
20 self-employment income.
- 21 9) Per the Proof of Service filed 6/1/2026, Mother's Income and Expense Declaration and her
22 declaration filed 6/1/2026 were mailed and emailed to Father on 5/27/2026.
- 23 10) Father did not file any responsive pleadings prior to the 6/4/2026 hearing.
- 24 11) At the 6/4/2026 hearing, the Court made the following findings and orders:
 - 25 a. The Court does not have sufficient information to make a guideline child support
26 calculation given that Mother's most recent pleadings provide two different income
27 figures for Father (with no documentary support) and there is no current Income and
28 Expense Declaration on file for Father.
 - 29 b. The hearing on Mother's request for child support is continued to 8/27/2026.

1 c. At least 20 calendar days prior to the next hearing date, Father shall file and serve a fully
2 completed Income and Expense Declaration. Father shall include as an attachment
3 paystubs for the immediately preceding two months, a year-to-date Profit and Loss
4 Statement or Schedule C, and a Profit and Loss Statement or Schedule C for 2025.

5 d. If Father fails to file an Income and Expense Declaration prior to the next hearing date, at
6 least 10 calendar days prior to the next hearing date, Mother shall file a declaration to
7 which she attaches documentary proof of her claims regarding Father's income.

8 12) On 8/14/2026, Father filed an Income and Expense Declaration. Father states that he earns on
9 average \$812 per month in dividends and interest, \$6,000 per month in wages, and \$6,000 per
10 month in average self-employment income as a dog walker. Father states that he has \$250,000 in
11 cash savings and \$4,000 in easily saleable investments. Father estimates his monthly expenses to
12 be \$7,360. Father reports no debts. Father attached a 2025 Schedule C which shows that he
13 earned \$77,023 in gross income in 2025 and paid \$33,107 in expenses, for net self-employment
14 income of \$43,916, which averages out to \$3,670 per month.

15 **B. Findings and Order**

16 1) The Court has been provided with several different income figures for Father. Mother has stated
17 that she believes Father earns either \$8,000 per month or \$6,500 per month. Father states he earns
18 \$6,000 per month in wages in addition to \$6,000 per month in net self-employment income as a
19 dog walker. However, the 2025 tax return attached to Father's 8/14/2026 Income and Expense
20 Declaration does not show that Father earns any W2 income. It instead shows that in 2025 Father
21 only earned net self-employment income of \$43,916, or approximately \$3,670 per month. The
22 Court will use \$3,670 per month in net self-employment income for Father in the XSpouse
23 calculation, together with the \$812 per month in dividends and interest income reported by
24 Father.

25 2) In accordance with the Xspouse calculation attached hereto and incorporated by reference,
26 effective 2/3/2026 (the date Mother filed her Request for Order), Father shall pay Mother \$214
27 per month in child support. Commencing 9/1/2026, this amount shall be paid to Mother by the
28 15th of each month.

- 1 3) Father owes Mother \$191 in child support arrears for the period 2/3/2026–2/28/2026 and \$1,284
2 for the period 3/1/2026–8/31/2026, for total child support arrears due of \$1,475. Father shall pay
3 this amount to Mother no later than 9/30/2026.
- 4 4) Mother’s attorney shall prepare the Findings and Order After Hearing.
- 5 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
6 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
7 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
8 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
9 proposed order after hearing directly to the court. Failure to submit the order after hearing within
10 10 days may allow the other party to prepare a proposed order and submit it to the court in
11 accordance with CA Rules of Court, Rule 5.125(d).
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Fixed Shares	Father	Mother	Monthly figures	Cash Flow			
#of children	0	1	2026		Guideline	Proposed	
% time with NCP	45.00 %	0.00 %		Comb. net spendable	6768	6797	
Filing status	SINGLE	HH/MLA	GUIDELINE	Percent change	0%	0%	
# exemptions	1 *	2 *	Nets(adjusted)	Father			
Wages+salary	0	0	Father	3637	Payment cost/benefit	-214	-116
Self-employed income	3607	3337	Mother	3131	Net spendable income	3423	3520
Other taxable income	812	0	Total	6768	Change from guideline	0	98
TANF+CS received	0	0	Support		% of combined spendable	51%	52%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	344%
New spouse income	0	0	Guideln CS	214	Total taxes	782	570
401(k) employee contrib	0	0	S.Clara SS	0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	214	# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	0	0
CS paid prev marriage	0	0			Mother		
Health insurance	0	0			Payment cost/benefit	214	145
Other medical expense	0	0			Net spendable income	3346	3276
Property tax expense	0	0			Change from guideline	0	-69
Ded interest expense	0	0	Proposed		% of combined spendable	49%	48%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	-244%
Misc tax deductions	0	0	CS	286	Total taxes	206	389
Qual bus income ded	0	0	SS	42	Dep. exemption value	0	0
Required union dues	0	0	Total	328	# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Saving	28			
Other GDL deductions	0	0	Releases	1			
Child care expenses	0	0	Released to Father				

Father pays Guideline CS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	45 - 55	0	0	0	Father	214	Father	214	Father
	45 - 55	0	0	0	Father	214	Father	214	Father

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CLAY MONTGOMERY,	)	Case Number: FDI-24-799969
Petitioner	)	Hearing Date: August 27, 2026
VS.	)	Hearing Time: 9:00 AM
CAITLIN MONTGOMERY,	)	Department: 404
Respondent	)	Presiding: AI MORI

- REVIEW OF CUSTODY AND VISITATION

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video at 11am on 8/27/2026 in Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

The parties shall be prepared to provide the Court with any updates regarding any Child Protective Services investigation and any other custody and parenting time matters.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JANA SABO,

Petitioner

VS.

ERIC OSMOLINSKI,

Respondent

) Case Number: FDI-25-801763

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, SPOUSAL OR PARTNER SUPPORT, ATTORNEY
FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jana Sabo (Mother) and Respondent Eric Osmolinski (Father) married on 2/19/2011.
Mother contends the parties separated on 8/1/2025, for a marriage of 14 years and 5 months.
Father states the date of separation is in November 2023, for a marriage of 12 years and 9 months.
The parties have three minor children, Jacob (DOB: 7/25/2011, age 14), Julian (DOB: 3/21/2014, age 12), and Lucas (DOB: 2/14/2016, age 10). Mother is represented by attorney Joseph Willmore. Father is represented by attorney Katy Gasparini.
- 2) There is currently a trial pending before the Honorable Judge Gold in related Case No. FDV-26-819044 on Mother's Request for Domestic Violence Restraining order to protect herself and the minor children against Father. Three days of trial occurred on 7/1/2026, 7/22/2026, and 7/28/2026. On 7/28/2026. Two additional days of trial are scheduled to occur on 10/1/2026 and 12/3/2026.

- 1 3) A 1st Amended Temporary Restraining Order (TRO) in was filed 4/29/2026 in the related FDV
2 case which protects Mother and the parties' minor children against Father. Among other orders,
3 the TRO requires Father to move out of the residence located at 2442 Larkin St. San Francisco,
4 CA 94109, grants Mother temporary legal and physical custody of the children, and grants Father
5 unsupervised visitation time with the children on alternate weekends from Friday 7 PM to Sunday
6 7 PM.
- 7 4) On 4/17/2026, Mother filed the instant Request for Order seeking guideline child support,
8 temporary guideline spousal support, and \$50,000 in need-based attorney's fees and costs.
9 Mother states the parties' marital standard of living was in the top 1%. Mother states Father earns
10 \$1.7 million annually as an oral surgeon whereas she earns \$573,428 annually as a self-employed
11 dentist. Mother states she currently cannot work because Father dislocated her jaw and knocked
12 out a tooth and her jaw is wired shut.
- 13 5) On 3/27/2026, Mother filed an Income and Expense Declaration. Mother states that she is 48
14 years old. Mother estimates that Father earns \$141,941 per month (i.e. \$1,703,292 annually)
15 based on her personal knowledge of work performed as an oral surgeon as well as her personal
16 knowledge of K-1s and prior tax returns. Mother states she earns \$47,785 per month (i.e.,
17 \$573,420 annually) in net self-employment income as a dentist. Mother states that her monthly
18 expenses total \$62,930, which includes \$21,000 per month for mortgage, \$8,800 per month for au
19 pair, \$2,400 per month for groceries, \$9,500 per month for school tuition, and \$6,600 for camps
20 and extracurricular activities for the children plus special services. Mother states that she has
21 \$50,000 in cash savings, \$40,000 in easily saleable investments, and her estimate of the total
22 value of the marital estate is \$8 million. Mother lists the following debts: \$16,000 for Honda,
23 \$28,000 for Porsche, and \$45,000 in credit card debt. Mother attached her K-1s for 2023 and
24 2024. Mother states that she has paid her attorney \$14,500 to date using savings and that she does
25 not currently owe any amount to her attorney.
- 26 6) On 5/19/2026, Mother's attorney Joseph Willmore filed a declaration stating that he has 13 years
27 of experience as a family lawyer, is a Certified Family Law Specialist, and he charges \$525 per
28 hour. Mr. Willmore states Mother has incurred \$11,197.40 in fees and costs thus far and he
29 anticipates an additional \$50,000 in fees including multiple hearings on the restraining order,

1 child custody, spousal support, issues concerning occupancy and sale of the marital residence,
2 meet-and-confer efforts, review of responsive pleadings, correspondence, preparing for
3 hearing(s), hearing(s), evidentiary hearing(s), trial, preparing orders and Judgment.

4 7) On 6/25/2026, Father filed a Responsive Declaration asking that the Court deny or reserve
5 jurisdiction on temporary spousal support until Mother has provided current profit and loss
6 statements, balance sheets, and related business records for her two dental practices. Father states
7 the Court should reserve jurisdiction on child support because custody and parenting time will
8 likely change after the domestic violence proceedings conclude on 7/28/2026. Father states the
9 Court should deny Mother's request for attorney's fees because she has not demonstrated need or
10 a meaningful disparity in access to funds. Father states that he is currently paying \$21,500 per
11 month for carrying costs for the family home where Mother exclusively resides with the children.
12 Father also states that Mother omitted mention of the \$8,500 per month she receives from IHSS
13 as the caregiver of their special needs child Lucas.

14 8) On 6/26/2026, Father filed an Income and Expense Declaration. Father states that he is 48 years
15 old. Father estimates that Mother earns \$56,285 per month (i.e. \$675,420) based on the \$47,785
16 per month that Mother reports earning plus "\$8,500 IHHS income not disclosed." Father states
17 that the parties have three properties (two in Hawaii and one in Las Vegas) that generate a loss
18 each month. Father states that he earns \$104,333 in net self-employment income per month as an
19 oral and maxillofacial surgeon. Father states that his monthly revenue decreased over the past 12
20 months by \$25,000 to \$30,000 per month due to "changes in ownership, patient flow, and
21 referrals at multiple dental offices where I practice." Father states that he has \$9,000 in cash
22 savings, \$563,000 in easily saleable investments, and the parties own \$8.5 million in equity in
23 various real properties. Father states his monthly expenses total \$82,295, which includes \$21,500
24 for mortgage for the family residence, \$18,000 for rent for himself, \$3,500 in anticipated
25 childcare, and \$26,000 for personal expenses charged to his credit card. Father states he has paid
26 \$17,810 to his attorney to date using "earnings" and he still owes his attorney \$500.

27 9) On 7/7/2026, Mother filed a Reply Declaration reiterating her original requests for order, with
28 support retroactive to 4/1/2026. Mother requests that the Court use \$141,941 for Father's monthly
29 net self-employment income in a support calculation. Mother states the domestic violence trial is

1 anticipated to be four days in length and is “not scheduled to conclude until October 2026.”
2 Mother states Father has made no voluntary support payments and has contributed “nothing”
3 towards expenses for childcare (au pair), private school tuition, extracurricular activities, camps,
4 and special services, which Mother states total \$29,800 per month. Mother states that Father
5 purchased a new home in Hawaii on 4/26/2026 with a purchase price of \$1.9 million, with a
6 \$700,000 down payment, which Mother states is a breach of Father’s fiduciary duty to the
7 community. Mother also states Father failed to attach a “single K-1” to his Income and Expense
8 Declaration and only provided a “very deficient document that he purports to be his Profit & Loss
9 Statement” which covers a mere 5 month period between January and May 2026. Mother also
10 states Father failed to provide a balance sheet. Mother states that “officer salary” (\$80,000)
11 should be added back to Father’s income as well as a \$5,502 for “ask my accountant” because it
12 is “not a valid deduction.” Mother states that her most recent Income and Expense Declaration
13 provides three years of K-1s and her most recent P&L. Mother attached to her Reply Declaration
14 a K-1 for Father for 2024 which Mother states shows Father’s “actual income of \$141,931” per
15 month.

16 10) On 7/7/2026, Mother filed an updated Income and Expense Declaration which now specifies that
17 Father has paid the mortgage on the marital home (where Mother exclusively resides with the
18 children) of \$21,000 per month since March 2026. Mother also states that she has now paid her
19 attorney \$58,000 using savings, income, and credit. Mother now attaches a K-1 for 2025, a
20 balance sheet for 2025, and a Profit and Loss Statement for 2025. Mother also attaches earnings
21 statements from IHSS which show \$46,340.75 in total net pay as of 5/31/2026 (i.e., \$9,268 per
22 month).

23 11) At the prior 7/9/2026 hearing, the Court made the following orders:

- 24 a. The Court finds good cause to continue the hearing on Mother’s Request for Order filed
25 4/17/2026 to 8/27/2026 for the following reasons:
- 26 i. The domestic violence trial is currently scheduled to end on 7/28/2026, which
27 may impact timeshare.
 - 28 ii. Neither party filed a Statement of Support Calculations, as required by San
29 Francisco Local Rule 11.7(A)(2)(b)

1 iii. Mother provided new substantive information in her pleadings filed on
2 7/7/2026

3 iv. The Court needs additional information for Father.

4 b. At least 20 calendar days prior to the next hearing date, Father shall file and serve an
5 updated Income and Expense Declaration which includes as attachments his balance
6 sheets for 2024 and 2025, K-1 for 2025, and an updated Profit and Loss Statement for
7 2026.

8 c. At least 10 calendar days prior to the next hearing date, both parties shall file and serve a
9 Statement of Support Calculations which shall include as an attachment a proposed
10 XSpouse calculation. Father shall address in his Statement of Support Calculations
11 Mother's request that "officer salary" be added back to Father's income as well as fees
12 for "ask my accountant."

13 d. Between now and the date of the new hearing, Father shall continue to pay for the
14 carrying costs for the marital residence where Mother resides and the parties shall share
15 equally the following expenses for the children that are currently due or that become due
16 for payment between now and the date of the new hearing, subject to reallocation at the
17 next hearing date:

18 i. Private school tuition;

19 ii. Extracurricular activities;

20 iii. Camps;

21 iv. Childcare so either party can work (including au pair).

22 12) On 8/21/2026, Father filed a Statement of Support Calculations. Father asks the Court to continue
23 the determination of support until completion of the DVRO trial. Nevertheless, Father included
24 an XSpouse calculation which shows the following monthly support figures: \$13,098 in child
25 support and \$4,020 in temporary spousal support, for a total of \$17,118. Father also states that
26 Mother has not provided the information necessary for him to determine and pay his share of the
27 children's private school tuition, extracurricular activities, camps, and work-related childcare.
28
29

13) On 8/24/2026, Mother filed a Statement of Support Calculations which includes an XSpouse calculation which shows the following monthly support figures: \$21,953 in child support and \$14,351 in temporary spousal support, for a total of \$36,304.

14) The difference in the parties' two support calculations stems from Father's use of \$106,407 in monthly net self-employment income (which is what Father states he has earned on average this year) and Mother's use of \$181,570 in monthly net self-employment income (which is what Father reported in his 2025 tax return). Father states that his 2025 – 2026 decrease in income stems from "changes in ownership, patient flow, and referral practices at the offices where he practices." Father also states that his financial records also "reflect a substantial recent payment of corporate state income taxes." Mother did not address Father's claim that his income available for support decreased this year.

B. Findings and Order

- 1) The Court will use Father's current reported average monthly net self-employment income figure of \$106,407 per month to calculate base guideline child and temporary spousal support, and will subject any income he earns above that amount to a Smith / Ostler order, as set forth below.
- 2) Effective 4/17/2026 (the date Mother filed her Request for Order), in accordance with the XSpouse calculation attached hereto and incorporated by reference, Father shall pay to Mother base guideline child support of \$13,104 per month and base guideline temporary spousal support of \$4,057 per month, for a total of \$17,160 per month.
- 3) Commencing 9/1/2026, Father shall pay base support to Mother in full no later than the 5th of each month.
- 4) Effective 4/17/2026, the parties shall share equally the following child support add-ons:
 - a. Uninsured healthcare expenses for the children;
 - b. Childcare so either party can work (including au pair).
 - c. Private school tuition;
 - d. Extracurricular activities; and
 - e. Camps.
- 5) Commencing 9/1/2026, the order set forth in the Amended Temporary Restraining Order filed 4/29/2026 requiring Father to pay the mortgage for the residence in which Mother resides in the

1 amount of \$21,000 per month is suspended, and Father shall have no further obligation under the
2 4/29/2026 Temporary Restraining Order to pay the mortgage for the residence where Mother
3 resides.

4 6) Commencing 9/1/2026, the procedure for requesting and paying reimbursements for uninsured
5 healthcare expenses for the children shall be as set forth in Judicial Council Form FL-192.

6 7) Commencing 9/1/2026, the procedure for requesting and paying reimbursements for qualifying
7 childcare costs, private school tuition, extracurricular activities, and camps shall be as follows.
8 When a party (e.g. Party A) pays for a qualifying expense, within 30 days of paying the expense,
9 Party A shall present to Party B: (a) an itemized statement of charges, (b) proof of payment, and
10 (c) the amount due and owing from Party B. Within 10 days of receiving this information, Party
11 B shall submit a payment to Party A for Party B's share of the expense.

12 8) The parties shall meet and confer to determine any child and temporary spousal support arrears
13 and credits due and owing between the parties, including any arrears and credits due and owing
14 for child support add-ons for the period 4/17/2026 – 8/31/2026. Payments Father made to the
15 mortgage between April 2026 and August 2026 shall be credited against any child and temporary
16 spousal support, and child support add-on, arrears Father may owe. The Court's jurisdiction over
17 this issue is reserved. If the parties are unable to reach an agreement regarding this issue, either
18 party may file a new Request for Order.

19 9) Effective 4/17/2026, the parties shall pay Smith/Ostler child and temporary spousal support on
20 net self-employment income earned above their respective base monthly net self-employment
21 income amounts, in accordance with the Bonus Reports attached to the XSpouse report. The
22 parties shall conduct an annual true-up to determine any Smith/Ostler child and temporary
23 spousal support owed. Commencing 4/30/2027, no later than April 30th of each year, the parties
24 shall exchange Profit and Loss Statements and Schedule Cs for the immediately preceding year.
25 The parties shall thereafter meet and confer regarding the amount of Smith/Ostler child and
26 temporary spousal support owed, which shall be paid no later than May 30th. The first true-up
27 shall occur in April 2027 and shall encompass income earned between April 2026 through
28 December 2026.
29

1 10) A review hearing is set for **Thursday, 1/14/2027 at 9:00 AM in Dept. 404** (after the DVRO
2 hearing concludes) to review temporary spousal and child support in light of any change in
3 Father's timeshare and/or any material changes to either party's net self-employment income. At
4 least 25 calendar days prior to the next hearing date, both parties shall file and serve updated
5 Income and Expense Declarations, which shall include as attachments Profit and Loss Statements
6 for 2026. At least 10 calendar days prior to the next hearing date, both parties shall file and serve
7 update declarations outlining their requested orders, as well as proposed Statements of Support
8 Calculation.

9 11) Mother's attorney shall prepare the Findings and Order After Hearing, which shall include as
10 attachments an FL-342 form, the XSpouse calculation, the Bonus Table, and the FL-192 form.

11 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
12 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
13 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
14 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
15 proposed order after hearing directly to the court. Failure to submit the order after hearing within
16 10 days may allow the other party to prepare a proposed order and submit it to the court in
17 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	0	3	2026			Guideline	Proposed
% time with NCP	14.00 %	0.00 %	GUIDELINE		Comb. net spendable	87876	87876
Filing status	SINGLE	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	1 *	4	Support		Father		
Wages+salary	0	0	Father	55303	Payment cost/benefit	-17160	-17160
Self-employed income	106407	47785	Mother	32573	Net spendable income	38143	38143
Other taxable income	0	9268	Total	87876	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	43%	43%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	13104	Total taxes	51104	51104
401(k) employee contrib	0	0	S.Clara SS	4057	Dep. exemption value	0	0
Adjustments to income	0	0	Total	17160	# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	0	0
CS paid prev marriage	0	0			Mother		
Health insurance	0	700			Payment cost/benefit	17160	17160
Other medical expense	0	0			Net spendable income	49733	49733
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	57%	57%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	13104	Total taxes	23780	23780
Qual bus income ded	0	0	SS	4057	Dep. exemption value	0	0
Required union dues	0	0	Total	17160	# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	14 - 86	0	0	0	Father	13104	Father	13104	Father
	14 - 86	0	0	0	Father	2621	Father	2621	Father
	14 - 86	0	0	0	Father	3931	Father	3931	Father
	14 - 86	0	0	0	Father	6552	Father	6552	Father

ANNUAL BONUS INCOME FATHER

Annual bonus paid to Mother

0

OFF

(0 = default steps)

Bonus amounts from: 0 to: 500000 Step: 10000

Additional Cost to Father						
Father's Bonus	Child Support % of bonus	\$	Spousal Support % of bonus	\$	Total CS	Total SS (adjusted)
0	0.00	0	0.00	0	0	0
10000	12.13	1213	13.77	1377	158457	50057
20000	12.12	2424	13.77	2754	159669	51434
30000	12.12	3636	13.77	4132	160881	52812
40000	12.12	4847	13.77	5510	162092	54190
50000	12.11	6057	13.78	6888	163302	55568
60000	12.11	7267	13.78	8268	164512	56948
70000	12.11	8477	13.78	9647	165721	58327
80000	12.11	9686	13.78	11027	166930	59707
90000	12.10	10894	13.79	12407	168139	61087
100000	12.10	12102	13.79	13788	169347	62468
110000	12.10	13310	13.79	15169	170555	63849
120000	12.10	14517	13.79	16551	171762	65231
130000	12.10	15724	13.79	17933	172968	66613
140000	12.09	16930	13.80	19315	174175	67995
150000	12.09	18136	13.80	20698	175380	69378
160000	12.09	19341	13.80	22081	176586	70761
170000	12.09	20546	13.80	23465	177791	72145
180000	12.08	21750	13.80	24849	178995	73529
190000	12.06	22913	13.78	26185	180158	74865
200000	12.02	24041	13.74	27483	181286	76163
210000	11.99	25169	13.71	28781	182414	77461
220000	11.95	26297	13.67	30080	183541	78760
230000	11.92	27424	13.64	31378	184669	80058
240000	11.90	28551	13.62	32677	185795	81357
250000	11.87	29677	13.59	33977	186922	82657
260000	11.85	30803	13.57	35277	188048	83956
270000	11.83	31929	13.55	36576	189174	85256
280000	11.81	33055	13.53	37877	190299	86557
290000	11.79	34180	13.51	39177	191425	87857
300000	11.77	35305	13.49	40478	192549	89158
310000	11.75	36429	13.48	41779	193674	90459
320000	11.74	37553	13.46	43081	194798	91761
330000	11.72	38677	13.45	44382	195922	93062
340000	11.71	39801	13.44	45684	197046	94364
350000	11.69	40924	13.42	46987	198169	95667
360000	11.68	42047	13.41	48289	199292	96969

Cost is an increase in support paid or a decrease in support received by this spouse

R = recipient of support

Bonus income may reverse direction of CS and/or SS

ANNUAL BONUS INCOME MOTHER

Annual bonus paid to Father

0

OFF

(0 = default steps)

Bonus amounts from: 0 to: 500000 Step: 10000

Additional Cost to Mother

Mother's Bonus	Child Support % of bonus	\$	Spousal Support % of bonus	\$	Total CS	Total SS (adjusted)
0	0.00	0	0.00	0	0 R	0 R
10000	3.06	306	18.28	1828	156939 R	46852 R
20000	3.00	601	18.00	3601	156644 R	45079 R
30000	2.98	895	17.91	5374	156349 R	43306 R
40000	2.97	1189	17.87	7148	156056 R	41532 R
50000	2.96	1481	17.85	8923	155764 R	39757 R
60000	2.95	1773	17.83	10699	155472 R	37981 R
70000	2.95	2063	17.82	12476	155181 R	36204 R
80000	2.94	2353	17.82	14253	154892 R	34427 R
90000	2.94	2642	17.81	16032	154603 R	32648 R
100000	2.93	2930	17.81	17811	154315 R	30869 R
110000	2.92	3217	17.81	19590	154027 R	29090 R
120000	2.92	3504	17.81	21371	153741 R	27309 R
130000	2.91	3789	17.81	23152	153455 R	25528 R
140000	2.91	4074	17.81	24934	153171 R	23746 R
150000	2.91	4358	17.81	26717	152887 R	21963 R
160000	2.90	4641	17.81	28500	152604 R	20180 R
170000	2.90	4924	17.81	30285	152321 R	18395 R
180000	2.89	5205	17.82	32069	152040 R	16611 R
190000	2.89	5486	17.82	33855	151759 R	14825 R
200000	2.88	5754	17.78	35562	151491 R	13118 R
210000	2.86	6016	17.73	37237	151229 R	11443 R
220000	2.85	6277	17.69	38913	150968 R	9767 R
230000	2.84	6538	17.65	40589	150707 R	8091 R
240000	2.83	6798	17.61	42266	150447 R	6414 R
250000	2.82	7057	17.58	43943	150188 R	4737 R
260000	2.81	7316	17.55	45621	149929 R	3059 R
270000	2.81	7574	17.52	47299	149671 R	1381 R
280000	2.80	7832	17.39	48680	149413 R	0
290000	2.79	8089	16.79	48680	149156 R	0
300000	2.78	8345	16.23	48680	148900 R	0
310000	2.77	8601	15.70	48680	148644 R	0
320000	2.77	8856	15.21	48680	148388 R	0
330000	2.76	9111	14.75	48680	148134 R	0
340000	2.75	9365	14.32	48680	147880 R	0
350000	2.75	9615	13.91	48680	147629 R	0
360000	2.74	9863	13.52	48680	147382 R	0

Cost is an increase in support paid or a decrease in support received by this spouse

R = recipient of support

Bonus income may reverse direction of CS and/or SS

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NATALIE JULIN,	)	Case Number: FDV-18-813977
Petitioner	)	Hearing Date: August 27, 2026
VS.	)	Hearing Time: 9:00 AM
CALVIN MARKSMAN,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER: JASMIN MARKSMAN MAY ATTEND SCHOOL TRIP TO CHINA

TENTATIVE RULING

The parties are ordered to appear in Dept. 404 at 9 AM on 8/27/2026 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.